

SENATE BILL NO. 216

INTRODUCED BY D. LENZ

A BILL FOR AN ACT ENTITLED: "AN ACT CREATING THE MONTANA PHYSICIANS' WORKFORCE INVESTMENT ACT; CREATING A GRANT PROGRAM TO SUPPORT GRADUATE MEDICAL EDUCATION IN MONTANA; ESTABLISHING A TASK FORCE TO ADMINISTER THE PROGRAM; REQUIRING THE DEPARTMENT OF LABOR AND INDUSTRY TO STAFF THE TASK FORCE; ESTABLISHING REPORTING REQUIREMENTS; PROVIDING AN ALLOCATION; AND PROVIDING AN EFFECTIVE DATE."

BE IT ENACTED BY THE LEGISLATURE OF THE STATE OF MONTANA:

NEW SECTION. Section 1. Short title. [Sections 1 through 5] may be cited as the "Montana Physicians' Workforce Investment Act".

NEW SECTION. Section 2. Purpose. The purposes of [sections 1 through 5] are to address Montana's physician workforce needs by:

- (1) creating a graduate medical education task force; and
- (2) establishing a start-up grant program to support the creation of graduate medical education programs in the state.

NEW SECTION. Section 3. Definitions. As used in [sections 1 through 5], the following definitions apply:

- (1) "Graduate medical education" means residency and fellowship programs that provide additional training after medical school that is required for medical graduates to obtain full medical licensure and become eligible for specialty board certification.
- (2) "Health sector facility" means a for-profit or nonprofit place of employment whose primary function is the delivery of health care services.
- (3) "Medical graduate" means a person who has graduated from a medical doctor program or

doctor of osteopathic medicine program but who has not yet completed a graduate medical education program.

(4) "Physician" has the same meaning as provided in 37-3-102.

(5) "Task force" means the Montana graduate medical education task force established in [section 4].

NEW SECTION. Section 4. Montana graduate medical education task force -- membership --

duties -- reporting. (1) There is a Montana graduate medical education task force. The task force consists of ~~12~~ SIX members:

(a) the director of the department of public health and human services or the director's designee;

(b) the commissioner of higher education or ~~the commissioner's designee~~ A DESIGNEE OF THE COMMISSIONER WITH EXPERIENCE IN GRADUATE MEDICAL EDUCATION;

(C) THE DIRECTOR OF THE DEPARTMENT OF LABOR AND INDUSTRY OR A DESIGNEE OF THE DIRECTOR WITH EXPERIENCE IN PHYSICIAN WORKFORCE ISSUES;

~~(e)-(D)~~ the following individuals appointed by the governor:

~~(i) a representative of the department of labor and industry with experience in physician workforce issues;~~

~~(ii)-(I)~~ a representative of an organization that represents Montana physicians;

~~(iii) one representative from each of the three medical school programs in the state;~~

~~(iv)-(II)~~ two representatives ONE REPRESENTATIVE from a hospital or other health sector facility with a graduate medical education program in the state; and

~~(v)-(III)~~ one patient advocate; and.

~~(d) two nonvoting members who are legislators:~~

~~(i) one house of representatives member selected by the speaker of the house; and~~

~~(ii) one senate member selected by the president of the senate.~~

(2) The task force shall elect a presiding officer and vice presiding officer.

(3) The task force shall develop and administer a grant program allowing Montana-based health sector facilities to apply for a start-up grant to establish a graduate medical education program.

(4) By September 1 of each year, the task force shall submit an annual report to the governor, the

economic affairs interim committee, and the children, families, health, and human services interim committee in accordance with 5-11-210. The report must include:

- (a) a description of the task force's proceedings since the previous report;
 - (b) an itemized expenditure report; and
 - (c) details of the graduate medical education grant program established in [section 5], including:
 - (i) health sector facilities that received grants;
 - (ii) the number of graduate medical education programs established or in development;
 - (iii) the specialty and location of each graduate medical education program;
 - (iv) the number of positions for medical graduates created in each graduate medical education program and how many of these positions were filled; and
 - (v) the accreditation status of each graduate medical education program.
- (5) The department of labor and industry shall provide staff services to the task force.

NEW SECTION. Section 5. Graduate medical education grant program -- eligibility. (1) (a)

There is a graduate medical education grant program administered by the Montana graduate medical education task force established in [section 4]. The purpose of the program is to address a shortage of physicians in the state by developing and expanding graduate medical education programs in the state.

(b) The task force shall develop policies and procedures to receive and evaluate applications and to administer grant funding.

(2) An application for a grant under this program must include:

- (a) the specialty area for each program;
- (b) proof of program accreditation or steps to obtain accreditation;
- (c) a 2-year financial cost projection for the program; and
- (d) a 5-year sustainability plan to ensure the program remains operational after the grant ends.

(3) A recipient of a grant under this program shall:

(a) attest that the recipient provides equal consideration for placement within a grant-funded graduate medical education program to applicants who:

- (i) are graduates of medical doctor programs or doctor of osteopathic medicine programs; or

(ii) have passed the United States medical licensing examination or the comprehensive osteopathic medical licensing examination; and

(b) submit the information prescribed in [section 4(4)] by July 30 of each year so the task force may include it in the task force's required report.

(4) The maximum grant amount a recipient may receive is \$2 million.

NEW SECTION. Section 6. Allocation. There is allocated to the department of labor and industry \$6 million from the general fund for the biennium beginning July 1, 2025, for the graduate medical education grant program provided for in [section 5].

NEW SECTION. Section 7. Codification instruction. [Sections 1 through 5] are intended to be codified as an integral part of Title 39, chapter 11, part 2, and the provisions of Title 39, chapter 11, part 2, apply to [sections 1 through 5].

NEW SECTION. Section 8. Effective date. [This act] is effective July 1, 2025.

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